

UNITED STATES DISTRICT COURT  
SOUTHERN DISTRICT OF NEW YORK

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Veronica Greenfield, et al.,

Plaintiffs,

- against -

**STIPULATION AND  
ORDER OF  
SETTLEMENT AND  
DISCONTINUANCE**

01 Civ. 8119 (ILG) (JMA)

The City of New York, et al.,

Defendants.  
-----X

**WHEREAS**, plaintiffs commenced this action by filing a complaint in or around December 2001, alleging violations of constitutional rights; and

**WHEREAS**, defendants have denied any and all liability arising out of plaintiff's allegations; and

**WHEREAS**, the parties now desire to resolve the issues raised in this litigation, without further proceedings and without admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed, with prejudice, and without costs, expenses, or fees in excess of the amount specified in paragraph "2" below.

2. Defendant City of New York hereby agrees to pay plaintiffs a total of Two Hundred Thousand Dollars (\$200,000.00) in full satisfaction of all claims, including claims for costs, expenses and attorney fees. Additionally, Sgt. Edward Risano agrees to pay plaintiffs a total of Five Hundred Dollars (\$500.00) in full satisfaction of all claims, including claims for costs, expenses and attorney fees. In consideration for the payment of these sums, plaintiffs

agree to dismissal of all the claims against the individually named Defendant The City of New York, New York City Police Officer Christopher Ikone, Officer Jay Santana, Sgt. Edward Risano, and to release all defendants, any present or former employees or agents of the City of New York, and the City of New York from any and all liability, claims, or rights of action arising from and contained in the complaint in this action, including claims for costs, expenses and attorney fees.

3. Plaintiffs shall execute and deliver to defendants' attorney all documents necessary to effect this settlement, including, without limitation, releases based on the terms of paragraph 2 above and Affidavits of No Liens.

4. Nothing contained herein shall be deemed to be an admission by any of the defendants that they have in any manner or way violated plaintiffs' rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules, regulations or bylaws of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

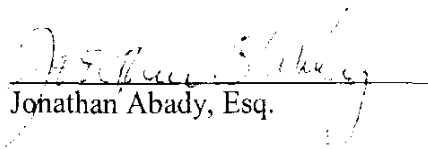
5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York.

6. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Dated: New York, New York  
2003

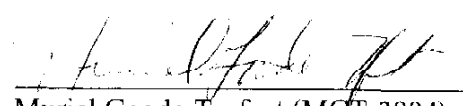
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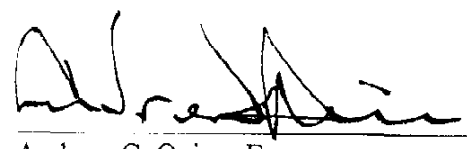
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By:

  
Andrew C. Quinn, Esq.

SO ORDERED: